

HOUSE BILL 1862

By Brooks

AN ACT to amend Tennessee Code Annotated, Title 2 and
Title 10, Chapter 7, relative to elected public
officials.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 10-7-504(f), is amended by adding
the following new subdivision (f)(12):

(A) The personally identifying information of an elected state or local public
official in the possession of a state or local governmental entity, official, or employee is
confidential and is not open for public inspection.

(B) Personally identifying information made confidential by this subdivision
(f)(12) must be redacted wherever possible and this subdivision (f)(12) must not be used
to limit or deny access to otherwise public information because a file, a document, or a
data file contains confidential information.

(C) This subdivision (f)(12) does not:

(i) Limit access to such information by law enforcement agencies, courts,
or other governmental agencies performing official functions;

(ii) Close any personnel records of such elected officials that are
currently open under state law; or

(iii) Limit access to personally identifying information made confidential
under this subdivision (f)(12), when the elected official expressly authorizes the
release of such information.

(D) As used in this subdivision (f)(12), "personally identifying information" means the information of an elected state or local public official described in subdivisions (f)(1)(A)-(H).

SECTION 2. This act takes effect at 12:01 a.m. on July 1, 2026, the public welfare requiring it.